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Case Number: 26PSCV01342 Hearing Date: September 24, 2026 Dept: O

Tentative Ruling

DEFENDANT SOLAR MOSAIC LLC'S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS is GRANTED; Plaintiffs have not met their burden of showing a (genuine) factual dispute that Helen did not sign the other two agreements namely as she attested that she received the agreements to her email. A proposed order has been filed.

As the court is staying all the proceedings, this renders the motion for a protective order moot; the court will also inquire as to whether the parties will stipulate to taking SOLAR SERVICING LLC'S motion to compel arbitration off calendar.

Background

This case arises from the installation of solar panels. Plaintiffs RAED FAWAZ and HELEN FAWAZ allege the following against Defendants ALL PREMIUM CONTRACTORS, INC., a California Corporation; SOLAR MOSAIC LLC; a Delaware Limited Liability Company; CONCORD SERVICING LLC, a Delaware Limited Liability Company, CONCORD SERVICING INTERNATIONAL LLC, an Arizona Limited Liability Company: In or around February 2023, Defendants, through their sales side, initiated contact with Plaintiffs by cold call in an effort to sell a residential solar system for the Subject Property; The solar sales company was All Premium Contractors, and the finance company or lender was Mosaic. The transaction was presented and consummated as a loan. The documents were signed on or about February 24, 2023, at Plaintiffs' home; Plaintiffs are informed and believe, and based thereon allege, that after the initial \$25,000 approval, Defendants and/or their agents used Helen's

personal information to

open a second loan for approximately \$75,000 without Plaintiffs' knowledge, consent, signature, or authorization (Plaintiffs never signed, approved, or were informed that a second loan was required); as for the system, although the system is presently capable of some operation, it has not functioned as represented. Plaintiffs have experienced system shutoffs, inconsistent system performance, failure to meet performance projections, and battery-related problems; after Mosaic originated and/or initially held the subject loan obligations, Mosaic assigned, transferred, sold, delegated, conveyed, and/or otherwise caused its rights to be acquired in whole or in part by Defendants Concord Servicing LLC and Concord Servicing International LLC.

On April 13, 2025, Plaintiffs filed suit asserting the following causes of action (COAs):

1. Fraud / Intentional Misrepresentation;
2. Negligent Misrepresentation;
3. Negligent Hiring, Retention, and Supervision;
4. Breach of Contract and
5. Unfair Business Practices in Violation of Business
& Professions Code §

17200 et seq.

On June 16, 2026, Solar Mosaic, LLC filed the instant motion to compel arbitration.

On August 12, 2026, DEFENDANTS CONCORD SERVICING, LLC AND CONCORD SERVICING INTERNATIONAL, LLC filed a demurrer, which the court sustained with leave to amend.

On August 17, 2026, DEFENDANT SOLAR SERVICING LLC'S filed a motion to compel arbitration. The hearing is set for 10/7.

On September 9, 2026, the court denied Plaintiffs' ex-parte to 'TO ADVANCE THE HEARING ON DEFENDANT SOLAR MOSAIC LLC'S MOTION FOR PROTECTIVE ORDER; ALTERNATIVE REQUEST TO CONTINUE THE MOTIONS TO COMPEL ARBITRATION.'

On September 11, 2026, Plaintiffs filed their opposition to the instant motion.

On September 17, 2026, the reply was filed.

Discussion

Defendant

Solar Mosaic LLC ("Mosaic") moves to compel Plaintiffs Raed Fawaz ("Raed") and Helen Fawaz ("Helen") ("Plaintiffs")[1] to arbitrate their claims because Plaintiff Helen agreed to arbitration. More specifically, Mosaic explains that Helen entered into a home improvement agreement with All Premium Contractors, Inc. ("All Premium") and to finance this project, Helen entered into two Home Improvement Loan Agreement and Promissory Notes (the "Loan Agreements") with WebBank; the Loan Agreements include arbitration agreements.[2] The arbitration agreement specifically extends to "service providers as well as their parent companies, subsidiaries, and affiliates...also include third parties, such as subcontractors, that you bring a Claim against at the same time you bring a Claim against us or any other Related Party" and the provision applies to "any claim, dispute or controversy between you and us (or any Related Party) that arises from or relates in any way to this Note." Mosaic argues that even as a non-signatory it may invoke arbitration because it is a "related party," which Plaintiffs do not appear to dispute. (See Opp. p. 11:23-25.)

For reasons to be described below, the motion is granted.

Preliminary Issue

Before engaging in the merits, the court turns to an issue that was not meaningfully addressed by either party but that could have readily resolved much of Plaintiffs' concern in opposition disputing the signing of the electronic documents: Helen acknowledges she did sign one of the

((three) agreements which does contain an arbitration provision.[3]

While Plaintiffs are disputing signing the additional \$75,000 financing, Plaintiff Helen concedes signing a \$25,000 initial loan. (See e.g. Opp. p. 1:15-18 [“Helen denies electronically signing either the \$25,000 or the \$75,000 loan agreement. [] Plaintiffs acknowledge a paper transaction concerning \$25,000, but deny authorizing a second \$75,000 loan or another person to execute the disputed electronic agreements.”], emphasis added; see also p. 2:22-23 [“The complaint alleges that Plaintiffs were solicited for residential solar improvements, had limited English proficiency, and agreed to an original \$25,000 transaction.”], emphasis added; see also p. 6:19-20 [“[A] wet-signed document (the only such document that Plaintiffs contend exist)....”], emphasis added; see also Helen Decl., ¶3 [“In or around February 2023, a representative of Defendant All Premium Contractors, Inc. presented me with hard copy documents in person concerning approximately \$25,000 in financing for a residential solar system at my home. The only loan documentation I knowingly signed was a hard copy document that I signed by hand concerning that original approximately \$25,000 in financing.”], emphasis added; see also Helen ¶17 [“I was not told during the original transaction that I was entering into two separate loans totaling approximately \$100,000. My understanding was that I had agreed to a single financing obligation of approximately \$25,000. Accordingly, I did not personally place those signatures on the documents, and I did not authorize another person to place them there on my behalf.”], emphasis added.) While Plaintiffs tersely argue there is a “distinction between the original paper transaction and the disputed electronic documents” (Opp. p. 3:1-2), they do not identify any differences in the loan terms they admittedly agreed to and the electronic versions.[4]

While

Mosaic does address the foregoing, they only do so in reply and still do not provide a copy of the \$25,000 agreement. Consequently, the court will focus on the two other loans. To do that, the court will carefully employ the burden-shifting mechanism.

Legal

Standard

Key to

determining that the motion weighs in Mosaic’s favor is the burden shifting mechanism employed in arbitration motions. The party seeking arbitration has

the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. (Ramirez v. Golden Queen Mining Co., LLC (2024) 102 Cal.App.5th 821, 830.) Although the party seeking arbitration bears the ultimate burden of proof as to the existence of an arbitration agreement, the burden of producing evidence on the issue may shift pursuant to a three-step process recognized by California courts. (Ibid.)

The first step requires the party seeking arbitration to carry the initial burden of presenting prima facie evidence of a written agreement to arbitrate the controversy. (Ibid.) This step is met rather easily: the moving party merely has to attach a copy of the arbitration agreement purportedly bearing the opposing party's signature. (Id. at p. 831.) It became well settled by the Condee court that the party seeking arbitration "need not following the normal procedures of document authentication and need only allege the existence of an agreement and support the allegation...." (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218.) When an electronic signature, as here, is involved, the burden does not become more demanding. (See Fabian v. Renovate America, Inc. (2019) 42 Cal.App.5th 1062, 1067, quoting Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 844 ["The burden of authenticating an electronic signature is not great."]) "The party seeking authentication may carry its burden in any manner, including by presenting evidence of the contents of the contract in question and the circumstances surrounding the contract's execution." (Fabian, supra, 42 Cal.App.5th at p. 1068.)

Once

that initial burden is met, the second step requires the party opposing arbitration to carry the burden of producing evidence to challenge the authenticity of the agreement. (Ramirez, supra, 102 Cal.App.5th at p. 831.) To do this, the plaintiffs/opposing party must "identify a factual dispute as to the agreement's existence" and must present admissible evidence to support the existence of that factual dispute. (Id. at p. 832.) "For example, if a party disputes the authenticity of his or her signatures, the party 'must offer admissible evidence creating a factual dispute as to the authenticity of the[] signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent...." (Id. at pp. 832-833, italics original; see also Rosenthal v. Great W. Fin. Sec. Corp. (1996) 14 Cal.4th 394, 413-14.) As some courts put it, it isn't just a mere factual dispute, but a genuine factual dispute. (See Bolton v. Solar Mosaic, LLC 2025 WL 1548586 p. 4,

quoting *Xinhua Holdings Ltd. v. Elec. Recyclers Int'l, Inc.*, No. 1:13-CV-1409 AWI SKO, 2013 WL 6844270, at *5 (E.D. Cal. Dec. 26, 2013) [“[T]he party opposing arbitration must show a genuine issue of material fact as to the validity of the agreement to arbitrate, and [t]he required showing mirrors the showing that is necessary to defeat summary judgment. As such, courts give the opposing party the benefit of all reasonable doubts and inferences that may arise.”], internal citations and quotations omitted.)

If the opposing party meets the burden of producing sufficient evidence, the third step requires the party seeking arbitration to prove by a preponderance of the evidence that the parties formed a valid contract to arbitrate their dispute. (Ramirez, *supra*, 102 Cal.App.5th at p. 833.)

Step One: Initial Showing

Mosaic contends the agreements bearing Helen's electronic initials and signature is authenticated by DocuSign. The court agrees. To reach that determination, the court will turn to *Fabian v. Renovate Am., Inc.* (2019) 42 Cal.App.5th 1062, a case relied upon by Plaintiffs.[5]

Facts of Fabian:

In *Fabian*, the plaintiff filed a complaint against the solar panel company alleging that they were improperly installed. (*Fabian*, *supra*, 42 Cal.App.5th at p. 1064.) As alleged, *Fabian* stated that “Renovate made an unsolicited telephone call to her home about financing the solar panels and signed her name on a financial agreement. All communications between *Fabian* and Renovate's representative occurred telephonically and she was never presented with any documents to sign” (i.e., the circumstances). (*Ibid*, emphasis added.) According to the contract Renovate provided in support of its motion, the contract stated that it was made and entered into between an entity and *Fabian* and her adult daughter, *Diana S.* (*Id.* at p. 1064.) The letters “DS” and the printed electronic initials “RF” appeared in a box at the end of the arbitration agreement and the words “DocuSigned by:” and the printed electronic signature “Rosa Fabian” appeared in a signature box at the end of the Contract; the date “2/28/2017,” a 15-digit alphanumeric character, and the words “Identity Verification Code: ID Verification Complete” also appeared in

the signature box. (Id. at p. 1065.) Of note, the court continued the hearing to allow the parties to conduct discovery including depositions; the depositions revealed that Renovate's belief Fabian electronically signed the subject agreement was not based on first-hand knowledge. (Id. at p. 1066.) The trial court determined that Renovate did not meet its burden, and the appellate court affirmed. The relevant passage of the opinion is as follows:

Citing to *Newton v. Am. Debt Servs* (N.D. Cal. 2012) 854

F.Supp.2d 712 (*Newton*), Renovate argues that

DocuSign renders Fabian's electronic initials and signature legally binding...

Renovate's reliance on *Newton* is

misplaced because, unlike here, the declarant in that case proved that the

"docusigned" electronic signature was the plaintiff's by explaining the process

used to verify the signature. [] There, the defendant submitted a declaration

stating that it sent a contract to the plaintiff using DocuSign, and that the

plaintiff signed the Client Signature portion of the contract. []

Once signed, the signature was assigned an identifying code, such as the

one that appeared above the plaintiff's signature on the subject contract. [] Here,

Renovate did not provide any evidence from or about DocuSign in its petition,

reply, or supplemental declaration. Indeed, the word "DocuSign" does not appear

in any of Renovate's moving papers. Renovate offered no evidence about the

process used to verify Fabian's electronic signature via DocuSign, including

who sent Fabian the Contract, how the Contract was sent to her, how Fabian's

electronic signature was placed on the Contract, who received the signed the

Contract, how the signed Contract was returned to Renovate, and how Fabian's

identification was verified as the person who actually signed the Contract. We

thus find Renovate's DocuSign authentication argument unsupported and

unpersuasive. (Id. at pp. 1068, 1069, emphasis added.)[6]

But as noted in reply, the evidence

here differs in a strikingly important manner: Plaintiff Helen received the

loan agreements. This is found in the last paragraph of her declaration: "In sum,

Exhibits A and C of the Treece Declaration are true and correct copies of the

documents AS I RECEIVED THEM. My authentication of Exhibits A and

C as documents I received is not intended as an admission that I executed,

authorized, or agreed to either document electronically, or that the purported

electronic signatures appearing on those documents are mine." (all emphasis

added.) Whereas in Fabian more about the process was needed because the

plaintiff stated all communications were telephonic and she received no

electronic arguments, here, that is not the case. Accordingly, the court finds Devon Treece's declaration, the senior Vice President, Servicing & Collections for Solar Servicing LLC ("Solar Servicing"), servicer for the loans at issue in this dispute, to adequately authenticate the signatures.

The
burden now shifts.

Step Two: Rebutting the Initial Showing

As
stated above, Plaintiffs must present evidence to show a genuine dispute that they did not sign the loan agreements. They do not. Plaintiffs spend a large portion of the opposition dedicated to the need for discovery, specifically regarding "the complete welcome-call recordings, available transcripts, dates, calling and receiving numbers, participant-identification records, and related notes." (Opp. p. 8:26-28.) But that isn't necessary.

The
court will rely upon *West v. Solar Mosaic* (2024) 105 Cal.App.5th 985, which Plaintiffs heavily rely upon in opposition. However, the facts of *West* are distinguishable. In *West*, a sales representative for a remodeling company, who claimed to work with a government program that helped senior citizens to fix up their homes, visited the plaintiffs to discuss solar installation. (Id. at p. 988-989.) Both of the plaintiffs were in their 90s and suffered from dementia and neither used email, computers, or mobile phones. (Id. p. 988.) The representative quoted the work to cost \$25,000, but the plaintiff noted how they could not afford that.[7] Because one of the plaintiffs did not understand what was going on, the representative sent the quote for the services and the loan documents to the daughter's email address. (Id. at pp. 989-990.) The documents were signed electronically in the father's name and completed within a matter of seconds, despite the documents being 33 pages, and, recall, both plaintiffs having dementia and despite phone recordings show unintelligible responses from the plaintiff. (Id. at p. 990.) Actually, the recording with the Mosaic representative revealed a female voice that could be heard in the background several times, likely the daughter telling her father how to answer. (Ibid.) Ultimately, the work began but then the daughter learned of the loan documents and tried to cancel it; Mosaic refused

and petitioned the trial court to compel arbitration after the plaintiffs sued the renovation company and Mosaic. (Id. at pp. 991-992.)

The trial court denied their motion. On appeal, Mosaic argued that Plaintiffs failed to submit evidence sufficient to meet their burden of demonstrating a factual dispute as to the authenticity of the father's electronic signatures. (Id. at p. 993.) The court disagreed heavily focusing on how the evidence strongly suggested that the father "lacked the technical facility" to access his daughter's email, "to create a digital signature, electronically click through and execute the loan agreement in seven locations, and submit those signatures, all in the space of 23 seconds." (Id. at p. 993.) Mosaic then argued that a declaration from the father was required, but that was rejected by the court. (Id. at p. 994.) With that, the court affirmed the trial court's ruling to deny the petition on the ground that "Mosaic had not met its ultimate burden of proving the existence of an arbitration agreement, specifically finding Mosaic had not proven [the father] was the person who completed the loan documents or that [the daughter] had the authority to bind [the father] to an arbitration agreement." (Id. at p. 992.)

Here,
no such evidence is present. In fact, as set forth in the complaint, "[t]he sales process did not occur through a single brief meeting. Instead, Defendants and/or their representatives subjected Plaintiffs to a prolonged sales effort lasting approximately five months, involving repeated visits and/or calls." (¶22.) Accordingly, unlike West wherein the plaintiffs (and the daughter) did "not understand" what was going on (id. at p. 989, see also fn. 5) over a one-time conversation, here, Plaintiffs understood the transaction. And while Plaintiffs may argue that recordings were at the very least produced in West of the telephone call, that went to the issue of capacity, which is not at issue here. (See also Bolton v. Solar Mosaic LLC 2025 WL 1548586 pp. 4-5.)

With
that, the court is not persuaded by Plaintiffs' request for a "schedule" to complete certain discovery to help satisfy their burden. The evidence that is needed to create a factual dispute is within the knowledge of Plaintiffs.

Second,
Plaintiffs focus on a time discrepancy. As explained in opposition, the first

certificate identifies loan 664680 and envelope 2BDD9E2EBD3A4314B948FB432298DCAC. It reports sending on March 2, 2023 at 7:53:51 p.m., viewing at 7:54:02, and signing at 7:54:23. The corresponding package's signature page bears February 24, 2023. The second certificate identifies loan 667885 and envelope 900C4C9E13C74F2CB2D315EAB2B48A8A, with sending on March 3 at 4:19:40 p.m., viewing at 4:19:52, and signing at 4:20:47. (Opp. pp. 5-6.) However, as persuasively argued by Mosaic in reply: "That discrepancy, at most, reflects that the template was generated before the DocuSign envelope was sent and Plaintiffs offer no evidence to the contrary." (Reply p. 9.) As for the 21- and 55-second intervals between viewing and signing, that too does not suggest anything irregular as electronic signatures in DocuSign are automatically applied when clicked. (Reply p. 9.)

All

in all, the packages were signed using her email address and Helen offers no evidence that any other person had access to her personal email account during either signing window, on March 2 or March 3, 2023. As argued by Mosaic, "[m]ere speculation that some unidentified person might have "controlled" her email account (Opp. at 4) does not satisfy Plaintiffs' burden to raise a genuine dispute as to whether she accessed her personal email to sign the Loan Agreements." (Reply pp. 10-11.)

Thus,

the court determines that Plaintiffs did not meet their burden such that the burden does not shift back.

Non-Signatory

Lastly,

Mosaic argues that Raed should be equitably estopped from avoiding the arbitration agreements because his claims in this litigation are entirely premised on the Loan Agreements between Helen and Mosaic. The court agrees, and courts have routinely enforced arbitration agreements against nonsignatories whose claims relate to an agreement containing an arbitration provision. (See Motion pp. 17-18; See also Reply. p. 11 citing *Mormile v. Sinclair* (1994) 21 Cal.App.4th 1508, 1511 [compelling nonsignatory husband to arbitrate]; *Hawkins v. Sup. Ct.* (1979) 89 Cal.App.3d 413, 416–419 (nonsignatory wife bound by

husband's

arbitration agreement).)

To

the extent that Plaintiffs rely upon Warfield v. Summerville Senior Living, Inc. (2007) 158 Cal.App.4th 443 to reject that proposition, that case is not instructive. Setting aside that the case involved a plaintiff using the residential care facility for elder abuse and the defendant attempting to compel arbitration based off the plaintiff's spouse's signing of an arbitration agreement and the spouse not being named as a plaintiff, the only discussion as to equitable estoppel there was brief. The court stated at page 450: "Rather, Yvonne has utilized the services of the residential care facility as provided under certain admissions documents. Those are separate agreements from the arbitration agreement—a different, optional agreement. Yvonne has not sought to make use of the arbitration agreement and she is not estopped to assert that it is unenforceable against her." Here, by contrast, Plaintiffs' own Opposition confirms as much by describing the transaction and its financing collectively and seeking relief — cancellation of the loans and restitution — that necessarily treats both Plaintiffs as bound by, or at least directly affected by, the same instruments.

Other

Matters

As

noted in opposition, Solar Servicing's motion is based upon the same arguments. (Opp. p. 2 ["The Court should also admonish Mosaic, Solar Servicing LLC ("Solar Servicing"), and their common counsel for unnecessarily multiplying the presentation of the same arbitration dispute. Defendant Solar Servicing's later motion repeats the same arguments and recycles the same Treece declaration and exhibits, and their common counsel states that the earlier declaration "equally supports" its motion."].) Based upon this ruling, the court will inquire whether Plaintiffs still intend on proceeding with that motion. =

Conclusion

Based

on the foregoing, the motion is granted; the case is stayed.

[1] The court refers to the Fawaz's by their first names for clarity.

[2] One identified as

Loan Agreement No. 664680 and another identified as Loan Agreement No. 667885

[3] The declaration of Devon Trecee, the Senior Vice President, Servicing & Collections for Solar Servicing LLC, the servicer for the loans in issue, does not provide the wet-signed document, only the electronic ones.

[4] See also Opp. p.

9:10-12 ["These would test whether the original paper transaction incorporated the arbitration terms Mosaic and Solar Servicing seek to enforce, and whether anyone had authority to execute either package."].

[5] Plaintiffs also rely

upon Espejo, but that involved a workplace credential issued by the employer and used within the employer's own HR platform. Fabian is particularly instructive as DocuSign was discussed.

[6] Plaintiffs argue

Trecee provides more workflow detail than the declaration rejected in Fabian. (Opp. p. 5.)

[7] In fact, when the daughter asked again about the cost, they were not given an amount. Here, Plaintiffs do not state what the total installation cost would be.